

FY2024 Emergency Supplemental Funding Request: Defense Appropriations

October 30, 2023

Background

On October 20, 2023, the Biden Administration submitted to Congress a [request for emergency supplemental appropriations](#) to address “key national security priorities” for FY2024. In [remarks delivered on October 19](#), President Joe Biden characterized the request as a response to Hamas’ terrorist attacks against Israel and the ongoing Russian invasion of Ukraine, describing the requested funds as a way “to support [the United States’] critical partners, including Israel and Ukraine.”

In total, the President requested that Congress appropriate approximately \$105.6 billion in budget authority for the Department of Defense (DOD), Department of State (DOS), Department of Homeland Security (DHS), and other executive departments and agencies. Funding was requested in five attachments: (1) Ukraine; (2) Israel; (3) Humanitarian Assistance; (4) Submarine Industrial Base; and (5) Border Supplemental Request. Although the Administration has asked Congress to provide all of this funding through a single bill, [some in Congress have proposed appropriating Israel-related funds through separate legislation](#).

Of the total, \$58.3 billion was requested for DOD as part of the Ukraine, Israel, and Submarine Industrial Base attachments. Funds were requested for military personnel (MILPERS); operation and maintenance (O&M); research, development, test, and evaluation (RDT&E); procurement; and military construction (MILCON) accounts, as well as for purchases under [the Defense Production Act of 1950 \(DPA\)](#).

Table 1 provides information on requested DOD appropriations.

**Table 1. Emergency Supplemental Funding Request,
Department of Defense—Military Programs**

(In millions of dollars of budget authority)

Appropriation Title	Requested Amount	Requested Expiration	Stated Purposes
Ukraine (Attachment 1)			

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Appropriation Title	Requested Amount	Requested Expiration	Stated Purposes
MILPERS	\$211.6	End of FY2024	Support for personnel deploying to the European theater of operations.
O&M	\$37,303.0	End of FY2024/End of FY2026 ^a	Personnel support (e.g., temporary duty costs), operational support (e.g., intelligence analysis, flying hours, maintenance), and other unit support costs; replacement of defense articles provided to Ukraine; reimbursement for services provided to Ukraine; defense production capacity expansion; and Ukraine Security Assistance Initiative activities.
Procurement	\$6,370.5	End of FY2026	Increasing production of missile systems; expanding facilities and supporting/increasing production capacity for critical munitions; providing ship depot maintenance for surge ship support; cybersecurity; and classified programs.
RDT&E	\$562.7	End of FY2025	Cybersecurity; other defense support; and classified programs.
Subtotal, Ukraine	\$44,447.8		
Israel (Attachment 2)			
O&M	\$4,400.0	End of FY2025	Responding to the situation in Israel and related expenses. These funds are requested to be made transferrable to other O&M, Procurement, RDT&E, and Revolving and Management Funds accounts for the purposes of: replacing defense articles provided to Israel or other foreign countries; reimbursing DOD components for defense services provided to Israel; improving ammunition plants to expand capacity and production; and acquiring critical articles.
Procurement	\$4,801.4	End of FY2026/End of FY2027 ^b	Transfer to the government of Israel for procurement of the Iron Dome and David's Sling defense systems; and improving ammunition plants to expand capacity.
RDT&E	\$1,200.0	End of FY2026	Transfer to the government of Israel for the development of the Iron Beam defense system.
DPA Purchases	\$198.6	Until expended	Mitigate industrial base constraints to accelerate production of defense equipment.
Subtotal, Israel	\$10,600.0		
Submarine Industrial Base (Attachment 4)			
O&M	\$557.8	End of FY2024	Improvements at the Navy's four public shipyards.
Procurement	\$2,448.6	End of FY2028	Support for the submarine industrial base, including initiatives in supplier development, shipbuilder and supplier infrastructure, workforce development, technology advancements, and strategic sourcing.
RDT&E	\$7.0	End of FY2025	Support for the submarine industrial base, including initiatives in supplier development, shipbuilder and supplier infrastructure, workforce development, technology advancements, and strategic sourcing.
MILCON	\$281.9	End of FY2028	Infrastructure improvements at the Navy's four public shipyards.

Appropriation Title	Requested Amount	Requested Expiration	Stated Purposes
Subtotal, Submarine Industrial Base	\$3,295.3		
DOD Total	\$58,343.1		

Source: CRS analysis of Office of Management and Budget, Letter to Speaker Pro Tempore of the House of Representatives, October 20, 2023, at <https://www.whitehouse.gov/wp-content/uploads/2023/10/Letter-regarding-critical-national-security-funding-needs-for-FY-2024.pdf>.

Notes: Security-related appropriations requested for non-DOD accounts—for example, the \$7.2 billion requested for [Foreign Military Financing](#) and the \$2 million requested for the Intelligence Community Management Account—are not included in this table.

- a. The request would make \$12 billion of this total available until the end of FY2026 for Ukraine Security Assistance Initiative activities. An additional amount of up to \$18 billion of this total would remain available until the end of FY2026 and would be made transferrable to O&M, Procurement, RDT&E, and Revolving and Management Funds accounts.
- b. \$801.4 million of this total is requested to remain available until the end of FY2026 to improve ammunition plants, and the remaining \$4 billion is requested to remain available until the end of FY2027 for transfer to the government of Israel.

Discussion

Of the total DOD funding requested, \$44.5 billion (76%) was requested for purposes related to Ukraine, \$10.6 billion (18%) for purposes related to Israel, and \$3.3 billion (6%) for purposes related to the submarine industrial base. According to a [letter](#) from the Director of the Office of Management and Budget accompanying the request, requested funds would “invest over \$50 billion in the American defense industrial base.”

The Biden Administration has requested that all funding included in this request be designated as emergency requirements pursuant to section 251(b)(2)(A)(i) of the Balanced Budget and Emergency Deficit Control Act of 1985 (P.L. 99-177), meaning that appropriations for these requirements would not be counted against spending caps established by the Fiscal Responsibility Act of 2023 (P.L. 118-5). The Administration has also asked that some requested funds be made transferable between different appropriations accounts at the discretion of DOD (see below).

Ukraine

Since February 2022, the United States has provided [more than \\$43.9 billion of security assistance to the government of Ukraine](#). In its FY2024 supplemental request, the Administration requested \$30 billion for the Defense-Wide O&M account to support this ongoing security assistance effort: \$12 billion to fund the Ukraine Security Assistance Initiative (USAI)—a program to procure defense equipment for provision to Ukraine—and \$18 billion to replace equipment already provided to Ukraine from DOD stocks. The Administration has also requested authority for DOD to transfer up to \$4 billion of this \$30 billion between USAI and the funds provided to replace U.S. equipment.

In addition, the supplemental request would provide approximately \$6.4 billion for DOD procurement, including \$3.6 billion for Army, Navy, and Marine Corps procurement accounts to expand facilities and provide other support for increasing the production of Ukraine-related weapons and munitions, and \$2.6 billion for Air Force procurement accounts to fund classified programs. It would also provide \$563 million for Army, Navy, Air Force, and Defense-Wide RDT&E accounts to fund cybersecurity,

unspecified defense support, and classified programs. Another \$212 million would be provided for Army, Marine Corps, Air Force, and Space Force MILPERS accounts to fund deployments to Europe.

The request also contains language that would authorize DOD to transfer up to \$4 billion between appropriations provided for in the Ukraine portion of the request.

Israel

The Administration request for Israel is \$10.6 billion, including \$5.2 billion for transfers to the Government of Israel and \$5.4 billion to remain in DOD accounts.

The \$5.2 billion for transfers includes \$4.0 billion for the Defense-Wide procurement account to be made available for transfer to Israel “for the procurement of the [Iron Dome](#) and [David’s Sling](#) defense systems” and \$1.2 billion for the Defense-Wide RDT&E account to be made available for transfer to Israel “for the development of the [Iron Beam](#) defense system.”

The \$5.4 billion to remain in DOD accounts includes \$801.4 million for ammunition procurement, \$198.6 million “to mitigate industrial base constraints” through Defense Production Act purchases, and \$4.4 billion that could be transferred among Defense-Wide O&M, procurement, and RDT&E appropriations for several purposes (including replenishing U.S. defense equipment, reimbursing DOD for defense services to Israel; expanding munitions production; and producing unspecified critical [defense articles](#)).

To allow for the obligation of requested funds for these intended purposes, the request includes language to amend several existing laws. The request would amend the Department of Defense Appropriations Act, 2005 (P.L. 108-287, §12001) to permit the transfer of previously prohibited categories of defense articles to the Government of Israel and temporarily waive limitations on the total value of defense stockpiles located in Israel and set aside for Israel’s use per [22 U.S.C. §2321h\(b\)](#). The request would also authorize the Secretary of Defense to provide fewer than 30 days’ notice to Congress when transferring defense articles to Israel in extraordinary circumstances.

Submarine Industrial Base

The condition of the submarine industrial base—the portion of [the defense industrial base](#) involved in the construction and sustainment of submarines—has occasioned concern from some [DOD officials](#) and [Members of Congress](#), who say it lacks sufficient capacity [to meet U.S. military requirements and accomplish the objectives of the AUKUS pact](#). The request includes approximately \$2.1 billion for the Shipbuilding and Conversion, Navy account (a procurement account), \$394 million for the Other Procurement, Navy account, and \$7 million for the Navy RDT&E account to “support the submarine industrial base... through initiatives in supplier development, shipbuilder and supplier infrastructure, workforce development, technology advancements, and strategic sourcing.” It would also provide approximately \$840 million for Navy O&M and MILCON accounts to fund infrastructure improvements at [the Navy’s four public shipyards](#), which maintain the U.S. submarine fleet.

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